

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: January 30, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

SCHEDULING ORDER

On January 29, 2026, the parties filed a joint status report and proposed discovery schedule. (Dkt. 13.) The parties state that they have met and conferred with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The parties are reminded *not* to state the parties' positions on whether to agree to mediation or their settlement positions in communication with the undersigned.

The parties also state that they have exchanged their initial disclosures. For this reason, that deadline is noted to have been completed in the schedule set forth below.

In the complaint and answer, the parties each requested an oral hearing. Pursuant to Commission Rules 62(a)(5) and 62(b)(3), the "presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5), (b)(3). At this point in the proceeding, it is not clear that either a pre-hearing conference or an oral hearing is necessary. Accordingly, the parties' requests for an oral hearing are **DENIED WITHOUT PREJUDICE**.

The discovery schedule proposed by the parties is reasonable and substantially adopted with minor adjustments to show that initial disclosures have been exchanged and add a briefing schedule. Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on January 14, 2026, that is no later than June 13, 2026. (Dkt. 12.) The proposed schedule satisfies this requirement.

The parties are hereby **ORDERED** to follow this schedule:

N/A as completed	Service of initial disclosures
February 28, 2026	Service of written discovery requests
April 30, 2026	Complete initial document production
June 13, 2026	Close of all discovery

July 13, 2026	Complainant's brief, proposed findings of fact, and appendix
August 12, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
September 2, 2026	Complainant's reply brief and responses to proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to refile any documents that do not comply with the requirements in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email an electronic copy of required documents in a word-processing format to

the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A.
HERVEY -S

 Digitally signed by MARY A.
HERVEY -S
Date: 2026.01.30 13:20:35
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Mary Apostolakos Hervey
Administrative Law Judge